

Federal Constitution

NOTES

Art. 46—(cont.)

- (ix) by substituting the word “ten” for the word “seven” in subparagraph (b)(i).

Note:

The above amendments shall not affect the composition of the House of Representatives or any election to that House until dissolution of Parliament occurring on or after the date of the coming into force of the Order made under section 12 of the Thirteenth Schedule—*See* section 4 of Act A837.

Clause (1)

This clause was again amended by Act A945, paragraph 2(a), in force from 07-06-1996, to increase the composition of the House of Representatives from one hundred and ninety-two to one hundred and ninety-three, i.e. specifically increasing the composition of the members from the State of Sarawak from twenty-seven to twenty-eight.

Clause (2)

Amended by Act A945, paragraph 2(b), in force from 07-06-1996—

- (i) by substituting the word “eighty-two” for the word “eighty-one” in paragraph (a); and
(ii) by substituting the word “twenty-eight” for the word “twenty-seven” in subparagraph (a)(xi).

Note:

However this amendment shall not affect the composition of the House of Representatives or any election to that House until the dissolution of Parliament occurring on or after the date of the coming into force of the Order made under section 12 of the Thirteenth Schedule to the Federal Constitution following the review undertaken pursuant to Clause (2) of Article 113 of the Federal Constitution and the said Thirteenth Schedule.

Clause (1)

Amended by Act A1095, paragraph 16(a), in force from 01-02-2001, by substituting the word “ninety-four” for the word “ninety-three”.

Clause (2)

Amended by Act A1095, paragraph 16(b), in force from 01-02-2001, to enable one member of the House of Representatives to be elected to represent the Federal Territory of Putrajaya.

Clause (1)

Amended by Act A1198, paragraph 2(a), in force from 15-08-2003, by substituting the words “two hundred and nineteen” for the words “one hundred and ninety-four”.

Clause (2)

Amended by Act A1198, paragraph 2(b), in force from 15-08-2003, by increasing the number of members of the House of Representatives consequent upon the delimitation of the constituencies undertaken by the Election Commission from 8 August 2002 until 7 September 2002. The increase is as follows:

- (a) six members from Johore;
(b) one member from Malacca;
(c) one member from Negeri Sembilan;
(d) three members from Pahang;
(e) two members from Penang;
(f) one member from Perak;
(g) five members from Sabah;

- (ix) three members from Perlis;
 - (x) twenty-five members from Sabah;
 - (xi) thirty-one members from Sarawak;
 - (xii) twenty-two members from Selangor; and
 - (xiii) eight members from Terengganu; and
- (b) thirteen members from the Federal Territories of Kuala Lumpur, Labuan and Putrajaya as follows:
- (i) eleven members from the Federal Territory of Kuala Lumpur;
 - (ii) one member from the Federal Territory of Labuan;
 - (iii) one member from the Federal Territory of Putrajaya.

Qualifications for membership of Parliament

47. Every citizen resident in the Federation is qualified to be a member—

- (a) of the Senate, if he is not less than thirty years old;
- (b) of the House of Representatives, if he is not less than eighteen years old,

unless he is disqualified for being a member by this Constitution or by any law made in pursuance of Article 48.

Disqualification for membership of Parliament

48. (1) Subject to the provisions of this Article, a person is disqualified for being a member of either House of Parliament if—

- (a) he is and has been found or declared to be of unsound mind; or
- (b) he is an undischarged bankrupt; or
- (c) he holds an office of profit; or
- (d) having been nominated for election to either House of Parliament or to the Legislative Assembly of a State, or having acted as election agent to a person so nominated,

Federal Constitution

NOTES

Art. 46—(cont.)

- (h) five members from Selangor; and
- (i) one member from the Federal Territory of Kuala Lumpur.

Clause (1)

Amended by Act A1260, paragraph 2(a), in force from 19-01-2006, by substituting the words “two hundred and twenty-two” for the words “two hundred and nineteen”.

Clause (2)

Amended by Act A1260, paragraph 2(b), in force from 19-01-2006, to increase the composition of the House of Representatives from two hundred and six to two hundred and nine, i.e. specifically increasing the composition of the members from the State of Sarawak from twenty-eight to thirty-one.

Art. 47

Amended by Act A1603, section 2, in force from 11-09-2019, by substituting the words “eighteen years” for the words “twenty-one years” in paragraph (b).

Art. 48

See Art. 47.

Clause (1)

- a. Act 10/1960, section 7, in force from 31-05-1960, inserted the words “or to the Legislative Assembly of a State” in paragraph (d) and substituted the words “one year or to a fine of not less than two thousand dollars” for the words “two years” in paragraph (e);
- b. Act 26/1963, section 70, in force from 16-09-1963, inserted the words “(or, before Malaysia Day, in the territories comprised in a Borneo State or in Singapore)” in paragraph (e).
- c. Act 160, section 2, in force from 29-08-1975, substituted the word “ringgit” for the word “dollars” in paragraph (e).
- d. Act A514, paragraph 19(b), in force from 27-08-1976, substituted the words “the State of Sabah or Sarawak” for the words “a Borneo State” in paragraph (e).
- e. Act A354, section 15, in force from 27-08-1976, substituted the words “any country outside the Federation” for the words “a foreign country” in paragraph (f).

he has failed to lodge any return of election expenses required by law within the time and in the manner so required; or

- (e) he has been convicted of an offence by a court of law in the Federation (or, before Malaysia Day, in the territories comprised in the State of Sabah or Sarawak or in Singapore) and sentenced to imprisonment for a term of not less than one year or to a fine of not less than two thousand ringgit and has not received a free pardon; or
- (f) he has voluntarily acquired citizenship of, or exercised rights of citizenship in, any country outside the Federation or has made a declaration of allegiance to any country outside the Federation.

(2) Federal law may impose, for such periods as may be specified thereby, disqualification for membership of either House of Parliament on persons committing offences in connection with elections; and any person who has been convicted of such an offence or has in proceedings relating to an election been proved guilty of an act constituting such an offence, shall be disqualified accordingly for a period so specified.

(3) The disqualification of a person under paragraph (d) or paragraph (e) of Clause (1) may be removed by the Yang di-Pertuan Agong and shall, if not so removed, cease at the end of the period of five years beginning with the date on which the return mentioned in the said paragraph (d) was required to be lodged, or, as the case may be, the date on which the person convicted as mentioned in the said paragraph (e) was released from custody or the date on which the fine mentioned in the said paragraph (e) was imposed on such person; and a person shall not be disqualified under paragraph (f) of Clause (1) by reason only of anything done by him before he became a citizen.

(4) Notwithstanding anything contained in the foregoing provisions of this Article, where a member of either House of Parliament becomes disqualified from continuing to be a member thereof pursuant to paragraph (e) of Clause (1) or under a federal law made in pursuance of Clause (2)—

- (a) the disqualification shall take effect upon the expiry of fourteen days from the date on which he was—

Federal Constitution

NOTES

Art. 48—(*cont.*)

Clause (2): See Election Offences Act 1954 [*Act 5*].

Clause (3)

The words “or the date on which the fine mentioned in the said paragraph (*e*) was imposed on such person” were inserted by Act 10/1960, paragraph 7(*c*), in force from 31-05-1960.

Clauses (4) & (5)

Added by Act A566, section 6, in force from 16-12-1983.

Clause (6): Added by Act A767, section 2, in force from 11-05-1990.

- (i) convicted and sentenced as specified in the aforesaid paragraph (e); or
 - (ii) convicted of an offence or proved guilty of an act under a federal law made in pursuance of Clause (2); or
- (b) if within the period of fourteen days specified in paragraph (a) an appeal or any other court proceeding is brought in respect of such conviction or sentence, or in respect of being so convicted or proved guilty, as the case may be, the disqualification shall take effect upon the expiry of fourteen days from the date on which such appeal or other court proceeding is disposed of by the court; or
- (c) if within the period specified in paragraph (a) or the period after the disposal of the appeal or other court proceeding specified in paragraph (b) there is filed a petition for a pardon, such disqualification shall take effect immediately upon the petition being disposed of.

(5) Clause (4) shall not apply for the purpose of nomination, election or appointment of any person to either House of Parliament, for which purpose the disqualification shall take effect immediately upon the occurrence of the event referred to in paragraph (e) of Clause (1) or in Clause (2), as the case may be.

(6) A person who resigns his membership of the House of Representatives shall, for a period of five years beginning with the date on which his resignation takes effect, be disqualified from being a member of the House of Representatives.

Provisions against double membership

49. A person shall not at the same time be a member of both Houses of Parliament, nor be elected to the House of Representatives for more than one constituency or to the Senate for more than one State, nor be both an elected and an appointed member of the Senate.

Federal Constitution

NOTES

Art. 49

See Art. 50(2).

Effect of disqualification, and prohibition of nomination or appointment without consent

50. (1) If a member of either House of Parliament becomes disqualified for membership of that House his seat shall become vacant.

(2) If a person disqualified for being a member of the House of Representatives is elected to that House or if a person disqualified for being a member of the Senate is elected or appointed to the Senate, or if an election or appointment to either House is contrary to Article 49, the election or appointment shall be void.

(3) (*Repealed*).

(4) A person cannot be validly nominated for election to membership of either House or appointed to the Senate without his consent.

Resignation of members

51. A member of either House of Parliament may resign his membership by writing under his hand addressed, if he is a member of the Senate, to the President of the Senate, and if a member of the House of Representatives, to the Speaker of that House.

Absence of a member

52. (1) If a member of either House of Parliament is without the leave of the House absent from every sitting of the House for a period of six months the House may declare his seat vacant.

(2) A member of either House of Parliament who has been granted leave of absence from the sittings of the House of which he is a member shall not, for the duration of such leave, participate in any manner in the affairs and business of that House.

Decisions as to disqualification

53. (1) If any question arises whether a member of a House of Parliament has become disqualified for membership, the decision of that House shall be taken and shall be final:

Federal Constitution

NOTES

Art. 50

See Art. 57(1A).

Clause (3)

This Clause was repealed by Act 25/1963, subsection 3(1), in force from 29-08-1963. It read as follows:

“(3) If the election of any person would or might be void under Clause (2) his nomination for the election shall be void.”.

Art. 51

See Art. 57(1A).

Art. 52

See Art. 57(1A).

Clause (2): Added by Act A514, paragraph 4(b), in force from 15-05-1981.

Art. 53

Proviso added by Act 26/1963, subsection 11(1), in force from 16-09-1963.

Clause (1): Renumbered by Act A566, paragraph 7(a), in force from 16-12-1983.

Clause (2): Inserted by Act A566, paragraph 7(b), in force from 16-12-1983.

Provided that this Article shall not be taken to prevent the practice of the House postponing a decision in order to allow for the taking or determination of any proceedings that may affect the decision (including proceedings for the removal of the disqualification).

(2) Where a member of either House of Parliament becomes disqualified under paragraph (e) of Clause (1) of Article 48 or under a federal law made in pursuance of Clause (2) of Article 48, Clause (1) shall not apply and he shall cease to be a member of that House, and his seat shall become vacant, immediately upon his disqualification taking effect in accordance with Clause (4) of Article 48.

Vacancies in Senate and casual vacancies

54. (1) Save as provided under Clause (3), whenever there is a vacancy among members of the Senate or a casual vacancy among members of the House of Representatives, such vacancy or casual vacancy shall be filled within sixty days from the date on which it is established by the President of the Senate that there is a vacancy or by the Election Commission that there is a casual vacancy, as the case may be, and an election shall be held or an appointment made accordingly:

Provided that failure to make any such appointment within the period specified in this Clause shall not invalidate any appointment made out of time:

Provided further that, if a casual vacancy in the House of Representatives is established on a date within two years of the date Parliament shall, in accordance with Clause (3) of Article 55, stand dissolved, such casual vacancy shall not be filled unless the Speaker notifies the Election Commission in writing that the numerical strength of the party that constitutes a majority of all the members of the House of Representatives is being affected by such vacancy, in which event such vacancy shall be filled within sixty days from the date of the receipt of that notification.

(2) (*Repealed*).

(3) Where a vacancy among members of the Senate relates to a vacancy which shall be filled by a member who shall be elected by a State in accordance with the Seventh Schedule, the provisions of Clause (1) shall not apply to the filling of such vacancy.